

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

Branch source B06: post-rehearing release route marker B06.

United States Court of Appeals for the Fourth Circuit

Mara Ellison v. Officer Nolan Rusk

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

Post-Rehearing Mandate Release Order

Entered August 11, 2026

The mandate is released for issuance today. Judgment was entered June 30, 2026. Mara Ellison filed a timely combined petition for panel rehearing and rehearing en banc on July 14. The Court denied both forms of rehearing on August 4. Seven calendar days have elapsed since that order, satisfying the ordinary interval in Federal Rule of Appellate Procedure 41(b).

No mandate-stay motion is pending in this branch, and no order has shortened or extended the post-rehearing interval. The Clerk has confirmed that the judgment and opinion remain unamended, no rehearing was granted, and no later directive prevents issuance. Release therefore follows the denial event rather than the original judgment date.

The mandate will carry the June 30 disposition: dismiss Officer Nolan Rusk's attempt to obtain review of factual sufficiency; reverse the legal denial of qualified immunity on the assumed facts; and remand with instructions to enter summary judgment for Rusk. Release makes no new merits ruling and does not resolve the disputed strike or equipment-reach accounts.

The Clerk shall assemble the certified judgment, the published opinion, and the direction regarding costs. Those materials may issue as the mandate without a separate substantive opinion. Electronic service shall be made on counsel and transmission recorded on this fictional counterfactual docket only.

Administrative Findings and Direction

The August 4 denial began the controlling seven-day period because the rehearing petition was timely. An ordinary mandate otherwise calculated from expiration of the initial rehearing window did not issue while that petition remained unresolved. The Court has neither recalled an earlier mandate nor authorized retroactive effectiveness; none previously issued in this path.

Issuance is effective when the Clerk releases the mandate. Receipt or docketing by the district court is not a separate condition of appellate effectiveness. The district court may then carry out the instruction to enter judgment for Rusk, while remaining bound by the opinion's jurisdictional statement that historical facts were not adjudicated on appeal.

No certiorari petition is adjudicated by this order. A party's ability to seek Supreme Court review is governed by the applicable law, but the absence of a granted Rule 41(d) stay means that such an intention does not hold the mandate. This release order concerns appellate timing alone.

The costs direction remains subject to the clerk's ordinary taxation process; it does not enlarge the remand. Native recordings, transcripts, and physical exhibits stay in the district record under existing custody arrangements. Only the appellate record materials necessary to document disposition are transmitted.

By direction of the panel, the Clerk shall issue the mandate dated August 11, 2026, enter the issuance event, and close the appellate docket after completing service and any remaining cost entries.